

		claimed statutes, the judgment creditor fails to do so at its peril. Accordingly, Judgment Creditor's notices are untimely and pursuant to the authority stated above, there can be no claim of exemption hearing. The hearing on Judgment Creditors' opposition to Debtor Richard Santos' claim of exemption is denied. As Hensley states that the money levied from the Kinecta account has been distributed to Santos, the Court makes no further order regarding the levying officer or disposition of the funds. Debtor Richard Santos is ordered to give notice.
10	30-2023-01300343 Villa vs. General Motors, LLC	Plaintiff Manuel Villa's motion to compel the deposition of defendant General Motor's person(s) most knowledgeable is GRANTED. The deposition categories and requests for production of documents shall be consistent with the court's Case Management Conference Order dated 02/17/23. (ROA 20.) As noted in the Case Management Conference Order, a party may seek to modify and/or delete any of these orders, via noticed motion, upon showing of good cause. The deposition shall take place on a mutually agreeable date, time and location, no later than 40 days from the date of this order. The parties may stipulate in writing to a date beyond 40 days. Plaintiff's request for sanctions is GRANTED in the amount of \$625 (1 hr. at \$565/hr, plus \$60 mtn fee) to be paid within 60 days' notice of this ruling. Moving Party is ordered to give notice of this ruling.
11	30-2023-01303813 Orosco vs. Heydari	<u>I. Demurrer</u> The Demurrer to the Complaint filed by Defendant Atefah Heydari ("Defendant") is SUSTAINED with 20-days leave to amend as to the second, third, fourth, fifth, and sixth causes of action, and OVERRULED as to the first cause of action. Cause of Action 1: Breach of Contract

		Defendant demurs to the breach of contract cause of action on the grounds it is unclear as to what the agreement requires from the parties, what the terms were, who the parties were, and what was to be performed by the parties. Defendant contends that Plaintiff's failure to specify the terms of the contract creates ambiguity as to what the agreement entails, making it difficult for Defendant to ascertain what the claims are as against Defendant and thus the claim is uncertain and unintelligible. A demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. (<i>People v. Lim</i> (1941) 18 Cal.2d 872, 883.) A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (<i>Khoury v. Maly's of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Errors and confusion created by "the inept pleader" are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (<i>Saunders v. Cariss</i> (1990) 224 Cal.App.3d 905, 908.) A demurrer for uncertainty should be overruled if the facts are presumptively within defendant's knowledge. (<i>Khoury v. Maly's of California, Inc., supra</i>, 14 Cal.App.4th at p. 616.) The Complaint alleges that Defendant HEYDARI is doing business as a sole proprietor under the fictitious name "Elite Auto Service;" that Plaintiff visited Elite Auto Service on or about October 13, 2021 and met with "Mike who was working the front desk at Elite Auto Service's place of business;" that "Mike" is the fictitious name of one of the Doe Defendants; that Plaintiff believed Mike to be owner of Elite Auto Service; that Plaintiff believed Elite Auto Business to be an actual company; that Mike and Plaintiff discussed selling Plaintiff's 2004 Porsche Cayenne Turbo and installing Plaintiff's high-performance engine into his 1998 Ford Mustang Cobra; and the "discussion culminated in an agreement for Elite Auto Service to install the Engine into the Mustang in exchange for the Cayenne as payment to Elite Auto Service;" that the terms of this agreement were manifested verbally and by a catalog of mobile phone text messages; that Plaintiff visited Elite Auto Service to inquire about the status of the work over the course of the next 12 months but was met with excuses as to the unfinished work; that on or about October 5, 2022, Elite Auto Service
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	informed Plaintiff that the engine installation into the Mustang was complete but this was misleading because it was not installed correctly and the engine was damaged in the process; that Elite Auto Service breached the agreement by not performing any of the work in a reasonable amount of time, by selling the Cayenne prior to complete installation of the engine into the Mustang, by damaging the engine and Mustang, and by misrepresentations; and that Plaintiff was harmed as a result. (See Complaint, ¶¶ 3, 4, 8, 9, 13, 17, 18, and 22.) Here, the cause of action, though no model of clarity, is not so unintelligible that Defendant cannot reasonably respond. Any ambiguities can be clarified through discovery. (<i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135; <i>Khoury, supra</i>, 14 Cal.App.4th at 616.) Further, the contract is alleged to be oral. (See Complaint, ¶ 8.) “An oral contract may be pleaded generally as to its effect, because it is rarely possible to allege the exact words. (<i>Khoury, supra</i>, 14 Cal.App.4th at 616.) “The rules of pleading require, with limited exceptions not applicable here, only general allegations of ultimate fact.” (<i>McKell v. Washington Mut., Inc.</i> (2006) 142 Cal.App.4th 1457, 1469.) “The plaintiff need not plead evidentiary facts supporting the allegation of ultimate fact.” <i>Id.</i> “A pleading is adequate so long as it apprises the defendant of the factual basis for the plaintiff’s claim. [citations omitted.]” (<i>Id.</i> at 1470.) Since the complaint satisfies these requirements, the demurrer to the 1st cause of action for breach of contract is OVERRULED. Cause of Action 2: Promissory Fraud Per CACI 1902, a false promise (or promissory fraud) claim requires that Defendant made a promise to plaintiff that defendant did not intend to perform when the promise was made, that defendant intended plaintiff to rely on this promise, that plaintiff did rely on the promise, that defendant did not perform the promised act, that plaintiff was harmed, and that plaintiff’s reliance on the promise was a substantial factor in causing plaintiff’s harm. Here, Plaintiff asserts that the alleged misrepresentations were that “Elite Auto Service is a company where Mike was the owner” and “Elite Auto
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		Service would perform the work correctly, legally, and in a reasonable amount of time.” (Complaint ¶ 24.) The representation that Mike owned Elite Auto Service was not a promise made to Plaintiff that could be performed or not performed. While it would be a misrepresentation, it is not grounds for a promissory fraud claim. As to the allegation that there was a promise that the work would be performed “correctly, legally, and in a reasonable amount of time,” Plaintiff asserts his reliance was reasonable because this term was implied. (Complaint ¶ 26.) The allegations of the complaint do not indicate that this was a promise actually made by any Defendant to Plaintiff. As such the demurrer to the second cause of action is SUSTAINED with leave to amend. Cause of Action 3: Conversion Defendant demurs to the conversion cause of action on the ground that it is an improper attempt to spin a defective contract claim into a tort claim; that Plaintiff has failed to plead that he owns the Porsche or has a right to possess the Porsche; and there can be no “conversion” when Plaintiff alleges he provided the Porsche to Defendant as payment for the installation of the engine into the Mustang. “Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion are the plaintiff's ownership or right to possession of the property at the time of the conversion; the defendant's conversion by a wrongful act or disposition of property rights; and damages. [citations omitted.]” (<i>Plummer v. Day/Eisenburg, LLP</i> (2010) 184 Cal.App.4th 38, 50.) Here, the Complaint alleges that Elite Auto Service interfered with Plaintiff’s personal property by selling the Porsche Cayenne without consent and before completing the agreed upon work to install the engine into the Mustang and refusing to complete the agreed work upon and that Elite Auto Service damaged Plaintiff’s personal property by breaking parts on the engine and Mustang and by incorrectly installing the engine into the Mustang. (See Complaint, ¶¶ 32 and 33.) The Complaint, however, alleges that the agreement was for Elite Auto Service to install the engine into the Mustang “in exchange for the Cayenne as payment to Elite Auto Service” and that Plaintiff fully performed all of his duties and obligations under their oral agreement. (See Complaint, ¶¶ 9
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		and 19.) It appears that Plaintiff left the Cayenne with Elite Auto Service as part of the oral agreement between the parties and as payment for Defendant’s services. As such, it does not appear that Defendant “converted” the Cayenne. Further, although Plaintiff contends in Opposition that transfer of ownership to the Porsche was to occur <i>after</i> the proper engine installation of the Mustang, the Complaint does not allege that is what the parties agreed to as part of their oral agreement. As such the demurrer to the third cause of action is SUSTAINED with leave to amend. Cause of Action 4: Violation of Penal Code § 496 Penal Code § 496(a) provides “Every person who buys or receives any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or who conceals, sells, withholds, or aids in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained” is subject to incarceration. “A plaintiff may recover treble damages and attorney’s fees under section 496(c) when property has been obtained in any manner constituting theft.” (<i>Siry Investment, L.P. v. Farkhondehpour</i> (2022) 13 Cal.5th 333, 361.) Here, Plaintiff’s opposition asserts that ownership of the Porsche was never transferred and thus the sale was conversion and theft, the damage to the Mustang and engine are conversion, and that the Defendant will not turn over the items until Plaintiff signs a release. However, the allegations as to the ownership of the Porsche at the time of the sale and the allegations as to Defendant’s refusal to release the engine and the Mustang are not found in the Complaint. Further, Plaintiff provides no legal argument or authority for the idea that the damage done to the engine and Mustang constitute theft. As such, the demurrer to the fourth cause of action is SUSTAINED with leave to amend. Cause of Action 5: Declaratory Relief Defendant argues that the claim for declaratory relief fails as Plaintiff has not to pled any facts to show how declaratory relief would prevent harm, as declaratory relief operates prospectively to settle controversies before they escalate, per <i>Travers v. Loudon</i> (1967) 254 Cal.App.2d 926, 931. Here,
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		Plaintiff's claim for declaratory relief requests the court determine the terms of the contract; however such relief is accompanied by a number of other claims based on alleged breach of those terms. Where there is an accrued cause of action for an actual breach of contract or other wrongful act, declaratory relief may be denied. (<i>Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC</i> (2010) 191 Cal.App.4th 357.) Plaintiff has already brought a breach of contract claim, and there are no allegations that the rights and obligations of the parties need to be determined to avoid any future breaches. As such, the demurrer to the fifth cause of action is SUSTAINED with leave to amend. Cause of Action 6: Injunctive Relief Defendant argues that the request for injunctive relief is a remedy rather than a cause of action. Plaintiff asserts he will soon file a request for preliminary injunction. However, the cause of action itself appears to be based on Business and Professions Code § 17200 et seq. It is unclear whether this cause of action is actually a claim for injunctive relief or whether it is a claim for Unfair Competition. As such, the demurrer to the sixth cause of action is SUSTAINED with leave to amend. <u>II. Motion to Strike</u> Given the ruling on the above demurrer, the Motion to Strike is MOOT. Moving party is ordered to provide notice of these rulings.
12	30-2023-01311699 Chavez vs. Walker	Continued to 12/4/23